

1.

CASE #	CASE NAME	HEARING NAME
CVRI2405411	TROMMALD vs OSUNA	MOTION TO COMPEL

Tentative Ruling: Hearing off calendar, set in error.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2600990	MARTINEZ vs TESLA, INC.	MOTION FOR ATTORNEY'S FEES

Tentative Ruling:

The Court finds that Plaintiff was the prevailing party for purposes of attorney fees and costs. The Court finds the number of hours expended to be reasonable. However, the Court finds that the hourly rate is not reasonable. The hourly rate of \$745 is reduced to \$350, the hourly rate of \$945 is reduced to \$450 and the paralegal rate of \$250 is reduced to \$200. This results in an attorney fee award of \$7870. Costs of \$613.18 are also awarded. Plaintiff is to submit an order in conformance with the Court's ruling.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2601547	PETERS vs FAULKNER	DEMURRER ON COMPLAINT

Tentative Ruling:

Demurrer should be sustained with leave to amend.

A cause of action for medical mal-practice is subject to the statute of limitation governed by Code of Civil Procedure section 340.5, which delineates two limitations periods: a one-year discovery rule and a three-year outer cap.

One-year limitation:

Here, the Complaint does not disclose the facts sufficient to establish that Plaintiff's action is barred by the one-year period which begins to run when "plaintiff discovered, or through the use of reasonable diligence should have discovered, the injury...." from the allegedly unnecessary surgery. (Code Civ. Proc., § 340.5.) The Complaint alleges that Plaintiff did not, and could not, discover the fact about the misdiagnosis and the subsequent surgery until March of 2025, and he filed his action within one year from that date.

Three-year limitation:

However, the three-year outer cap is not subject to the same discovery component and begins to run from the time Plaintiff sustained his injury. Injury, purposes of section 340.5, means manifestation of an appreciable harm, which in this case, as disclosed by the allegations of the Complaint, was well before March 2025, when Plaintiff underwent the unnecessary October 2022 prostatectomy and experienced the ensuing symptoms of incontinence and erectile dysfunction approximately two months later. Here, Plaintiff did not file his Complaint within three years from the time the harm manifested. The three-year provision is "an outer limit that terminates all malpractice liability; it commences to

run when the patient is aware of physical manifestations of her injury without regard to awareness of the negligent cause.” (*Hills v. Aronsohn* (1984) 152 Cal.App.3d 753, 762.) Therefore, the demurer should be sustained based on the three-year limitations period.

However, the statute provides that the time for commencing the action is tolled upon “(1) proof of fraud, (2) intentional concealment, or (3) the presence of a foreign body that has no therapeutic or diagnostic purpose or effect in the person of the injured individual.” (Code Civ. Proc., § 340.5.) The Complaint did not sufficiently address the basis for any applicable tolling. Therefore, leave is granted for Plaintiff to amend his Complaint to allege any additional facts which may establish tolling.

Plaintiff to file an amended pleading within 20 days, unless the court orders otherwise. (Cal. Rules of Court, rule 3.1320(g).).

4.

CASE #	CASE NAME	HEARING NAME
CVRI2603302	WALSH vs LE VECKE CORPORATION	MOTION TO APPEAR AS COUNSEL PRO HAC VICE AS TO LE VECKE CORPORATION

Tentative Ruling:

The Pro Hac Vice application of Phillip A. Ciano for plaintiff Ian Walsh is approved.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2603302	WALSH vs LE VECKE CORPORATION	MOTION TO APPEAR AS COUNSEL PRO HAC VICE AS TO LE VECKE CORPORATION

Tentative Ruling:

The Pro Hac Vice application of Oliver L. Herthneck for plaintiff Ian Walsh is approved